

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahmen, Department Advocate's Office, February 26, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23777 against Police Officer Zachary Palladino, Tax Registry No. 964694. The case was conferenced on February 4, 2025, before Assistant Deputy Commissioner of Trials, Anne Stone, who approved Department Imposed Training. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

DISAPPROVED

SEP 25 2025

JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-032004BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PALLADINO	FIRST ZACHARY	M.I.	COMMAND 007
SHIELD NO. 10746	TAX REGISTRY NO. 964694	SOCIAL SECURITY NO.	DATE APPOINTED 10/18/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Zachary Palladino, on or about June 2, 2020, at approximately 2104, while assigned to 007 PCT and on duty, in the vicinity of intersection of Fulton Street and Broadway, New York County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device without sufficient legal authority.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.



FIRST DEPUTY COMMISSIONER

7/11/25
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

9/25/25
DATE



POLICE DEPARTMENT

September 22, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202003834 (Incident Date: June 2, 2020) involving Police Officer Zachary Palladino, Tax No. 964694 (DADS Case No. 2021-23777/ PODS Case No. C-032004)

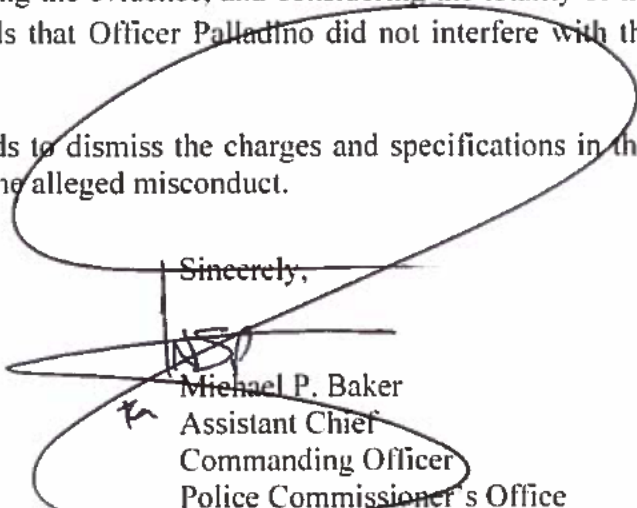
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Zachary Palladino and determined that no disciplinary action is warranted regarding the allegation of interfering with the use of a recording device.

In this case, members of the service were responding to the looting of a store, and Officer Palladino was dispersing a crowd when he also ordered a member of the press to leave the area. That individual was recording the incident and was able to continue recording, even after Officer Palladino ordered him to leave. After reviewing the evidence, and considering the totality of the circumstances, the Police Commissioner finds that Officer Palladino did not interfere with the civilian's use of a recording device.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 23, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Zachary Palladino
Disciplinary Case No.: 2024-31255

Dear Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Michael P. Baker, dated September 22, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you determined that “no disciplinary action is warranted” in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Assistant Chief Baker’s notification. Assistant Chief Baker stated that after reviewing the recommendation of the CCRB, you determined that the actions of PO Palladino do not warrant disciplinary action. The CCRB disagrees with your recommendation.

In his letter, Assistant Chief Baker stated that PO Palladino did not interfere with § 87(2)(b) ability to record. However, the evidence clearly shows that § 87(2)(b) was unable to continue recording at the location where he was originally recording because PO Palladino ordered him to leave that area. Video footage conclusively documents that, at the time that PO Palladino began dispersing civilians from the east sidewalk of Broadway, the civilians were simply standing on the sidewalk and § 87(2)(b) and § 87(2)(b) had already been placed in custody. The situation at hand constituted neither a stressful street encounter nor an immediate safety threat to officers or civilians. In addition, § 87(2)(b) was a member of press carrying a professional camera along with his credentials and was exempt from any curfew that was set in place. As such, § 87(2)(b) had the right to continue to record in the original location that he had begun recording. Lastly, video footage captured PO Palladino saying, “Get back, get out of my face” and § 87(2)(b) moved onto the sidewalk and complied as he walked away from the location where he was recording. The evidence shows that PO Palladino’s actions directly interfered with § 87(2)(b) ability to record.

Please note that the negotiated penalty was already a downward deviation from the recommended mitigated penalty of a forfeiture of ten (10) vacation days outlined in the Disciplinary Matrix. In making this recommendation, the CCRB already took into account the totality of the circumstances during this incident as well as PO Palladino's history with the Department. Additionally, this negotiated penalty was accepted by Assistant Deputy Commissioner of Trials Anne Stone during the plea conference held on February 4, 2025.

Based upon the foregoing, CCRB requests that the negotiated penalty of Training be imposed.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board

CC: John Tynan, Esq.